

25STCV23924 25STCV23924

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Case Number: 25STCV23924 Hearing Date: July 27, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/27/2026

CASE NUMBER: 25STCV23924

CASE NAME: Silvia Parada

Cornejo, et al. v. Maria A. Cubas Holdings Corp.

MOVING PARTY: Defendant Maria A. Cubas
Holdings Corp.

OPPOSING PARTY: Plaintiff Silvia Parada Cornejo, et
al.

PROCEEDING: Demurrer to Complaint without motion to strike

RULING

SUMMARY: Defendant Maria A. Cubas
Holdings Corp.'s Demurrer is overruled.

Defendant

Maria A. Cubas Holdings Corp. is to file an Answer within ____ days of this Ruling. The Case Management Conference is continued

to _____, 2026 at 8:30AM.

Background

On August 14, 2025, Silvia P. Cornejo ("Silvia")^[1]; and German O. Guevara ("Guevara"); Brittany R. Cornejo ("Brittany"); and Rubi R. Cornejo, by and through her guardian ad litem, Brittany ("Rubi" and collectively "Plaintiffs"), filed their Complaint against the Defendants Maria A. Cubas Holdings Corp. ("Cubas Holdings") and Does 1 to 20 (collectively "Defendants") alleging causes of action for (1) Negligence; (2) Breach of Implied Warranty of Habitability; (3) Breach of Los Angeles Municipal Code ("LAMC") § 45.33; (4) Unfair Business Practices in Violation of Civil Code § 17200 et seq.

In their Complaint, Plaintiffs allege the following: They are tenants at 268 S Burlington Ave, Los Angeles, CA 90057 ("the property"), who moved in about eighteen months ago and have duly paid rent. (Complaint ¶ 2.) Plaintiffs later discovered the property was illegal, unfit for occupancy, and infested with cockroaches. (Complaint ¶ 3.) After a building inspector for the Los Angeles Department of Building and Safety cited Defendants for unapproved use or conversion of the property to living quarters, Defendants decided to empty the property of the Plaintiffs by shutting off the water and power. (Complaint ¶¶ 2, 3, 4, 5.) After the alleged attempt by Defendants to empty the property of the Plaintiffs, "Defendants resorted to violence, harassment, and threats." (Complaint ¶ 6.) Guevara suffered a physical assault and that, in one of the repeated attempts by Defendant to lock out Plaintiffs from the property, Silvia suffered a personal injury. (Ibid.) Due to these conditions and interactions with the Defendants, Plaintiffs seek damages for their physical injuries, severe emotional distress, and damage to their personal property. (Complaint ¶ 7.)

On January 20, 2026, Cubas Holdings filed its Demurrer to the Complaint.

On March 30, 2026, Plaintiffs filed their Opposition. On April 6, 2026, Cubas Holdings filed its Reply.

I.

Legal Standard

A.

Demurrer

The party against whom a complaint has been filed may object, by demurrer, to the pleading if the court has no jurisdiction of the subject of the cause of action alleged, the pleading does not state facts

sufficient to constitute a cause of action, or the pleading is uncertain. (Code Civ. Proc. § 430.10(a), (e), (c).) A demurrer may be directed to the entire complaint or any cause of action pleaded in it. (Code Civ. Proc § 430.50(a).) For purposes of testing the sufficiency of the cause of action, the demurrer admits the truth of all allegations and facts well pleaded but does not admit contentions, conclusions, or deductions drawn by the pleader from facts alleged and does not accept allegations of conclusions of law. (Simple Avo Paradise Ranch, LLC v. Southern California Edison Co. (2024) 102 Cal. App. 5th 281, 298-99.) Matters well pleaded are taken as true, no matter how improbable they may seem. (Ibid.) A demurrer can only be used to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. Id. A trial court may sustain a demurrer to an action if all the essential facts establishing that the action is barred by res judicata are within the complaint or subject to judicial notice. (Carroll v. Puritan Leasing Co. (1978) 77 Cal.App.3d 481, 481.) In ruling on a demurrer based on res judicata, the court may take judicial notice of the official acts or records of any court in this state. (Ibid.)

B.

Meet and Confer Requirement

A demurrer requires parties to meet and confer on the subject at issue. The demurring party, before filing, shall meet and confer with the party who filed the challenged pleading. (Code Civ. Proc. § 430.41(a).) This requirement is not met for the demurrer because neither party established it through their supporting declarations. However, under section 430.41 subdivision (a)(4) of the Code of Civil Procedure, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer. (Ibid.) Thus, the Court will address the demurrer on its merits.

II.

Judicial Notice

Judicial notice may be taken on “[r]ecords of . . . any court of this state,” (Evid. Code § 452(d).) Pursuant to California Rules of Court Rule 5.115, a party requesting judicial notice under Evidence Code section 452 must provide the court with a copy of the material. There are limitations on judicial notice of court records. A court cannot take judicial notice of the existence of facts asserted in every document of a court file. (Day v. Sharp

(1975) 50 Cal.App.3d 904, 914.) A court can, however, “take judicial notice of the existence of each document in a court file, and take judicial notice of the truth of facts asserted in documents such as orders, findings of facts and conclusions of law, and judgments.” (Ibid.) Truth of facts asserted is judicially noticeable if they generally appear to have an assurance of accuracy and reliability. (Weiner v. Mirchell, Silberberg & Knupp (1980) 114 Cal.App.3d 39, 46.) Judicial notice substitutes formal proof for matters that are not reasonably subject to dispute. (Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1565; quoting Jefferson, Evidence Benchbook § 47.2 (2d ed.).)

The Court rules as follows on the Cubas Holdings request for judicial notice and Plaintiffs’ objections to the request:

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Exhibit

A– RJN is denied – Objection sustained: This is limited to Exhibit A. This does not affect the 5-Day Notice, which appears to be identical in Exhibit B.

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Exhibit

B – RJN is granted: The

Court takes judicial notice of the existence of the forcible detainer filed against Silvia and Guevara to the extent they are court-filed documents. The Court will not take judicial notice of the facts alleged therein.

· Exhibit C – RJN is granted.

· Exhibit D – RJN is granted –
Objection overruled.

· Exhibit E – RJN is granted: This is limited to the extent
they are court records.

· Exhibit F – RJN is granted –
Objection overruled.

· Exhibit G and H – RJN is granted
– Objection overruled: In their objection to the moving party’s
request for judicial notice, Plaintiffs mislabel their objection to Exhibit G

as the City Letter. Exhibit G is the restraining order issued against Guevara. The City Letter is Exhibit H. Whichever exhibit Plaintiffs referred to, the outcome would remain the same to the extent the documents are court records (restraining order) and to the extent the document reflects the official acts of local agencies (City Letter). (See *Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist.* (2021) 62 Cal.App.5th 583, 599.)

III.

Discussion

Cubas

Holdings argues that the Court lacks jurisdiction over this action because a default judgment was entered in a previous forcible detainer action, 25STUD04176, filed by Cubas Holdings against Silvia and German ("Default Judgment"). Specifically, Cubas Holdings argues that the Default Judgment adjudicated the following: (1) Silvia and Guevara were not tenants; (2) Silvia and Guevara illegally occupied the property; and (3) all Plaintiffs are subject to the Default Judgment. Cubas Holdings relies on restraining orders filed in the other action against Silvia and Guevara to demonstrate that both were trespassing on the property.

In their

Opposition to Cubas Holdings's Demurrer, Plaintiffs dispute whether the scope of the judicially noticeable documents demonstrates that the landlord-tenant relationship has been adjudicated. Plaintiffs argue the Default Judgment only adjudicates the issue of right to physical possession of the property. Plaintiffs contend that the present case is distinguished from the previous forcible detainer case as it is a personal injury and habitability case, not a right to possession case, and thus, is not barred by *res judicata*. Plaintiffs further argue that Brittany and Rubi, as non-parties to the forcible detainer action, cannot be bound by the Default Judgment.

In its

Reply, Cubas Holdings reiterates that entry of the Default Judgment conclusively established the truth of the matters alleged in the forcible detainer complaint.

The

issue before the Court is whether the Plaintiffs' claims in this case are barred by *res judicata* as a result of the Default Judgment.

The doctrine of res judicata rests on the judicial policy of limiting litigation by preventing a party who has had a fair adversary hearing on the issue from relitigating it and subjecting the other party to further expenses. (In re Crow (1971) 4 Cal.3d 613, 622-23.) There are two aspects to the res judicata doctrine: (1) claim preclusion and (2) issue preclusion (also known as “collateral estoppel”).

Claim preclusion bars claims that were, or should have been, litigated in the previous suit involving the same parties. (Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 806.) For claim preclusion to apply, the same cause of action must have been (1) raised in the two suits; (2) between the same parties; (3) resulting in a final judgment on the merits. (See In re Crow, supra, 4 Cal.3d at 622.) A successful claim preclusion defense bars the entire cause of action.

Issue preclusion applies to all issues that were involved in a prior case even though some factual matters or legal arguments that could have been presented in the prior case in support of such issues were not presented. (Kingsbury v. Tevco, Inc. (1978) 79 Cal.App.3d 314, 317-7318.) Issue preclusion bars litigation of a claim that was related to the subject matter of the first action and could have been raised in that action, but was not expressly pleaded. (Villacres v. ABM Industries, Inc. (2010) 189 Cal.App.4th 562, 576.) For issue preclusion to apply, there must have been (1) a final judgment on the merits (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) against a party who was a party to the first suit or one in privity with the party to the prior proceeding. (People v. Barragan (2004) 32 Cal.4th 236, 253.) Contrary to claim preclusion, issue preclusion does not bar entire causes of action; it only prevents relitigation of issues already decided.

The party who asserts res judicata bears the burden of proof. (Vella v. Hudgins (1977) 20 Cal.3d 251, 257.)

A.

Because forcible and unlawful detainers share a single governing statute, Plaintiffs’ cited Supreme Court precedent applies equally to both.

Cubas Holdings argues that the judgment in its favor in the prior forcible detainer action precludes the pending action pursuant to the

principles of res judicata. Principally, Cubas Holdings argues that although the Default Judgment is an unlawful detainer issued by the Clerk for possession only (see RJN Exh. C), based on the complaint in 25STUD04176, the judgment rendered is a default judgment on a forcible detainer action and not an unlawful detainer action. While forcible detainers actions and unlawful detainers actions are defined separately and involve distinct factual circumstances, they share the same procedural framework, pleading requirements, trial rules, and remedies under the corresponding unified chapter. (Code Civ. Proc. §§ 1159-1179a.) While the definitions of forcible and unlawful detainers are found in different statutes, they are generally distinguished by the entry of the possessor of the real property (i.e., lawful or unlawful). (See *Balassy v. Superior Court* (1986) 181 Cal.App.3d 1148, 1151; 7 Cal. Real Estate Law & Practice (2026) § 212.0; 29 Cal. Forms of Pleading and Practice Annotated (2026) § 333.40.) The shared comprehensive statutory scheme prevails over inconsistent general principles of law and procedure because the specific expeditious function of both types of actions is to restore immediate possession of real property. (Ibid.)

With even stronger reason, given the shared procedural framework under the same chapter, court precedents on the procedural effect of unlawful default detainer judgments can apply with equal weight to forcible default detainer judgements. Thus, that the prior forcible detainer action was resolved by unlawful detainer default judgment has no bearing on the analysis of the preclusive effect of a default judgment for the immediate possession of real property.

Typically, the scope of unlawful detainer actions only bears on claims of the right of immediate possession. (See *Vella*, supra, 20 Cal.3d at 255.) Thus, “a judgment in unlawful detainer usually has a very limited res judicata effect and will not prevent one who is dispossessed from bringing a subsequent action [. . .] to adjudicate other legal and equitable claims between the parties.” (Ibid.) In *Vella*, the Supreme Court held that full and fair litigation of an unlawful detainer, raised without objection and with fair opportunity to fully litigated in the proceeding, can result in “a judgement conclusive upon issues material to that defense.” (Id. at 256-57.) However, the Supreme Court denied giving preclusive effect to an unlawful detainer judgment based on a record that was “virtually barren.” (See *Vella*, supra, 20 Cal.3d at 255 at 258.) The Supreme Court held that an unlawful detainer proceeding with a sparse record, for example, one that was unrecorded or untranscribed, or lacking findings of fact or conclusions of law, fails to show the precise nature of the factual issues litigated or the depth of the trial court’s inquiry. (Ibid.) In *Vella*, the Supreme Court reasoned that the unlawful detainer did not have preclusive

effect because of its sparse record. (Ibid.)

Here, as in *Vella*, the record is virtually barren, as Cubas Holdings in the forcible detainer proceeding obtained a default judgment against Cornejo and Guevara. As in *Vella*, no record or transcript and no findings of fact or conclusions of law by the Court were in the court files. Under the *Vella* standard, the Court concludes that the case in which the default judgment was entered contained an insufficient record to preclude Plaintiffs' claims here.

B.

As an alternative ground, Cubas Holdings has failed to meet its burden under traditional *res judicata*.

As an initial step in the claim preclusion analysis, the Court notes that the cause of action in the Default Judgment was the right to immediate possession (RJN Exh. C), and the cause of action in the present action is personal injury and habitability. (Complaint ¶ 7.) These causes of action are not identical. Defendant's right to possession of the premises is not tied to the alleged injuries to the persons and habitability issues. Thus, claim preclusion does not bar Plaintiffs' action.

The Court further addresses issue preclusion as Cubas Holdings's Reply concentrates its on this prong of *res judicata*.

In applying issue preclusion, and the doctrine specified in Cubas Holdings's Reply, Cubas Holdings fails to satisfy the second and third elements because it has not shown that the two issues are identical or involve issues already litigated. In the prayer in the forcible detainer complaint Cubas Holdings sought possession of the property. (RJN Exh. B.) By contrast, the Plaintiffs' Complaint is based on personal injury and habitability. (Complaint ¶ 7.) These issues are not duplicative and, because no issues other than the right to possession resulted in the default judgment, it cannot have preclusive effect on the different issues presented in Plaintiffs' action. (*Vella*, *supra*, 20 Cal.3d at 255.) Although Cubas Holdings correctly notes that the doctrine of conclusiveness of judgments applies to a default judgment, a default judgment is not conclusive as to every necessary fact in a subsequent action on a different cause of action, as matters cannot be deemed properly adjudicated without a prior trial or hearing. (*Mitchell v. Jones* (1959) 172 Cal.App.2d 580, 586 [quoting *English v. English* (1937) 9 Cal.2d 358, 363].)

The sparse record of the forcible detainer proceeding fails to show an adequate opportunity to litigate the issue. No evidence is presented from which a strong inference may be drawn that the former proceeding was a conventional unlawful detainer action, which does have a preclusive effect. (Vella, supra, 20 Cal.3d at 257.) Based on the judicially noticed documents, Cubas Holdings's argument that the landlord-tenant relationship between the litigants has been determined is rejected. Assuming, for the sake of argument, that the question of Silvia's and German's tenancy would have constituted a defense to Cubas Holdings's forcible detainer action, the default judgment does not preclude subsequent litigation on the issue because the resolution for that question was not necessary to uphold the judgment. (English, supra, 9 Cal.2d at 363.) Therefore, the prior default judgement does not work as an estoppel on the issue of Cubas Holdings and Plaintiffs landlord-tenant relationship in the instant action.

Conclusion

For the reasons stated above, Defendant Maria A. Cubas Holdings Corp.'s Demurrer is overruled.

Defendant Maria A. Cubas

Holdings Corp. is to file an Answer within ____ days of this Court Ruling. The Case Management Conference is continued to _____, 2026, at 8:30AM.

Date: July 27, 2026

William E. Weinberger

Judge, Los Angeles Superior Court

[1]

Plaintiffs Silvia P. Cornejo, Brittany R. Cornejo, and Rubi R. Cornejo share the same surname. The Court addresses each individually by their first name for clarity.